

Generative Artificial Intelligence and Data Ethics in Schools and Academies

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Status:	Statutory Guidance (Given under Section 15 of the Education Act 2011)
Applies to:	England
Audience:	Academy Trust Boards, Maintained School Governing Bodies, Headteachers, Local Authorities

1. Executive Summary and Legal Context

1.1 Scope and Purpose

This statutory guidance sets out the Department for Education’s (DfE) mandatory framework for the procurement, deployment, and ethical monitoring of Generative Artificial Intelligence (GenAI) technologies within local authority-maintained schools and academy trusts. As AI tools integrate rapidly into pedagogical frameworks and administrative infrastructure, this policy ensures safeguarding standards, data integrity, and equitable access are maintained nationally.

Statutory Duty to Have Regard

Governing bodies, proprietors, and academy trust boards must ensure that school leadership teams have regard to this guidance. Deviations from the core frameworks detailed herein must be documented with explicit risk-mitigation arguments during local governance reviews and Ofsted inspections.

1.2 Key Objectives

- **Data Protection:** Preventing the exposure of pupil and staff Personally Identifiable Information (PII) to public or unencrypted foundational large language models.
- **Academic Integrity:** Standardizing cross-trust detection, reporting, and management of AI-assisted plagiarism in non-examination assessments (NEA).
- **Workforce Capability:** Minimizing teacher workload via sanctioned automated administrative workflows while maintaining human-in-the-loop oversight.

2. Permissible Use Cases and Tiered Risk Framework

The DfE categorizes school-level AI applications into four tiers of operational and ethical risk. Educational institutions must classify any proposed software procurement against this framework prior to deployment.

Risk Category	Permitted Applications & Examples	Mandated Control Measures
MINIMAL RISK	Automated spelling/grammar checks, administrative scheduling, anonymized resource/lesson planning engines.	Standard local procurement vetting; regular data checks.
MEDIUM RISK	Adaptive learning platforms, formative assessment feedback engines, student-facing tutoring chatbots.	Mandatory human-in-the-loop validation; sandboxed tenant structures.
HIGH RISK	Automated summative marking, automated behavioral profiling, predictive tracking for exclusion risk.	Strictly Prohibited without explicit, written ministerial authorization.

2.1 Human-in-the-Loop (HITL) Principle

For any system classified as Medium Risk, schools must enforce a strict Human-in-the-Loop requirement. AI-generated analysis or formative feedback templates must not be shared directly with pupils or parents without direct verification and modification by a qualified teacher (QTS).

3. Data Governance, Privacy and Safeguarding

3.1 Public vs. Closed Architecture Models

School staff are strictly prohibited from inputting any pupil data—including coursework, behavioral notes, attendance logs, or names—into publicly accessible, consumer-grade AI models (e.g., standard free tiers of public LLMs). All institutional procurement must prioritize "closed architecture" or "zero-retention" enterprise models where vendor contracts explicitly state that corporate data is not utilized to train foundational architectures.

3.2 Data Protection Impact Assessments (DPIAs)

Before launching any AI tool that processes pupil biometric, tracking, or educational performance data, the Data Protection Officer (DPO) of the school or trust must compile a comprehensive AI-specific DPIA. This document must review compliance with the UK General Data Protection Regulation (UK GDPR) and the Data Protection Act 2018.

Core Requirement: Vendor Data Transparency

Every AI vendor contract approved by an academy trust or local authority must contain a "Right to Erasure" clause tailored to algorithmic outputs. If a parent requests the deletion of a child's profile, the vendor must prove that the pupil's discrete data vectors have been successfully decoupled from any localized fine-tuning layers.

4. Managing Academic Integrity and Authenticity

4.1 Non-Examination Assessments (NEAs) and Coursework

In alignment with Joint Council for Qualifications (JCQ) regulations, schools and academies must implement a clear **AI Misuse Policy**. While AI can be legally utilized as a high-level research vector, the text, code, or digital media submitted for summative grading must remain the original product of the candidate.

4.2 Multi-Tiered Verification Framework

Where a teacher suspects a pupil has submitted uncredited AI-generated work, the school must deploy the following assessment hierarchy:

1. **Comparative Baseline Review:** Compare the suspicious text against historical, supervised in-class writing exercises.
2. **Viva-Voce Dialogue:** Conduct a brief, documented professional dialogue with the pupil regarding the conceptual foundations of their submission.
3. **Technical Review:** Utilize trust-sanctioned enterprise pattern analysis tools, while acknowledging that commercial AI detection percentages cannot serve as standalone proof of malpractice.

5. Institutional Governance and Strategy

5.1 Trust Board and Local Governing Body Responsibilities

From 1 September 2026, every Multi-Academy Trust (MAT) Board and Maintained School Governing Committee must nominate a ****Designated Digital Infrastructure and AI Lead**** from within their non-executive membership. This individual is responsible for reviewing the trust's AI risk register on a biannual basis.

5.2 Continuous Professional Development (CPD)

Accounting Officers must ensure that staff who routinely deploy AI utilities for workload reduction receive formal training encompassing:

- Algorithmic bias awareness and cultural hallucination detection.
- Prompt engineering architectures optimized for secure educational spaces.

- Reporting mechanisms for data-leak incidents involving automated infrastructure.

6. Compliance, Inspection, and Enforcement

Failure to adhere to the strict data safeguarding provisions detailed in Section 3 will trigger an immediate escalation to the Information Commissioner's Office (ICO) and may impact Ofsted leadership and management evaluations during statutory inspections.

The Education and Skills Funding Agency (ESFA) reserves the right to withhold discretionary capital allocations from institutions demonstrating systemic failures to maintain protected sandboxed environments for pupil data processing.

For policy queries or model procurement document templates, please access the Department for Education digital repository at gov.uk/government/publications/ai-education-framework-2026 or contact the ESFA compliance division.